

Pashchimanchal Vidyut Vitran Nigam Ltd. & Another v. J.P. International Sports Ltd. & Another

High Court of Judicature at Allahabad · Division Bench · 26 July 2021 (interim order; order-sheet 26.7.2021 to 24.4.2023, writ petition pending) · WRIT - C No. - 15712 of 2021 · **Writ petition pending; not finally decided. On the licensee's petition challenging an order of the Consumer Grievance Redressal Forum dated 22 March 2021, the Division Bench, recording that the matter required consideration, stayed by interim order dated 26 July 2021 the effect and operation of that order to the extent it directed re-assessment of the demand on the basis of reduced load, till the next date of listing (the interim order being extended thereafter). The first part of the Forum's order, implementing the Committee's report dated 9 November 2015 for the period 27.10.2011 to 23.11.2011, was left untouched. After several adjournments the matter was last listed for 1 May 2023.**

Source file: WRIC(A)_15712_2021.pdf

HEADNOTE

Order-sheet record of a pending writ petition brought by the licensee, Pashchimanchal Vidyut Vitran Nigam Ltd., against an order of the Consumer Grievance Redressal Forum dated 22 March 2021 concerning the bill for a period (27 October 2011 to 20 March 2012) during which no meter was installed at the consumer's premises. The billing dispute had been resolved by a Committee under clause 5.7 of the U.P. Electricity Supply Code, 2005 (report dated 9 November 2015); the consumer's complaint travelled through the Forum, the Electricity Ombudsman (which remanded on 28 December 2018), a fresh Forum order, a recall for want of notice, and finally the impugned order of 22 March 2021. That order had two parts: the first implemented the Committee's report for 27.10.2011 to 23.11.2011; the second provided that, on the consumer depositing the amount for that period within one month, the consumption for the remaining period would be reassessed on the basis of reduced load. The licensee, aggrieved only by the second part, contended that where supply is made without a meter clause 5.7 is attracted, requiring the bill to be raised on the basis of three months' average consumption after installation of the meter — the basis on which the Committee had already reported — so that there was no justification to further reduce the consumption. Finding that the matter required consideration, the Division Bench (Manoj Misra and Jayant Banerji, JJ.) stayed the second part (reduced-load reassessment) pending final hearing, and did not decide the clause 5.7 question.

FACTUAL SUMMARY

In respect of the supply of electricity to the first respondent, J.P. International Sports Ltd., for the period 27 October 2011 to 20 March 2012, a dispute arose over the demand raised by the petitioner-licensee, Pashchimanchal Vidyut Vitran Nigam Ltd. The dispute was resolved by a Committee on the basis of clause 5.7 of the U.P. Electricity Supply Code, 2005, and on the report of the Committee dated 9 November 2015 a bill was raised. The first respondent complained to the Consumer Grievance Redressal Forum in September 2016, praying that the bill for the period 27.10.2011 to 20.03.2012 — when no meter was installed — be corrected under clause 5.7 on the basis of the average of three months' consumption after installation of the meter. The Forum dismissed the complaint; the first respondent appealed to the Electricity Ombudsman, which by order dated 28 December 2018 remanded the matter; the Forum again confirmed its earlier order on 14 June 2019; on a recall application (allowed 5 March 2020 for want of notice after remand) the Forum re-examined the matter and passed the impugned order dated 22 March 2021, whose operative portion had two parts: the first implemented the Committee's report for consumption from 27.10.2011 to 23.11.2011, and the second provided that if the complainant deposited the amount for that period within one month, the consumption for the remaining period would be assessed on reduced load. Aggrieved only by the second part, the licensee filed Writ - C No. 15712 of 2021, contending that supply without a meter attracts clause 5.7 and its three-months-average measure, on which the Committee had already reported, leaving no justification to further reduce the consumption. On 26 July 2021 the Division Bench, finding the matter required consideration, stayed the second part of the Forum's order pending final hearing; the interim order was extended on later dates and the matter, passing through several benches, was last listed for 1 May 2023.

REUSABLE CONSTRUCTIONS

1. Where electricity has been supplied without a meter, clause 5.7 of the U.P. Electricity Supply Code, 2005 is attracted and the bill is to be raised on the basis of the average of three months' consumption after installation of the

meter; a licensee may contend that, the assessment Committee having reported on that very basis, there is no justification for a forum to further reduce the consumption on 'reduced load'. **order of 26.07.2021**

2. At the instance of the licensee, a Consumer Grievance Redressal Forum's direction to reassess a demand on reduced load may be stayed pending final hearing, while the part of the order that merely implements the assessment Committee's report is left to operate. **order of 26.07.2021**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.7

OBITER

Interim stay of a Consumer Grievance Redressal Forum's direction to reassess a demand on reduced load

QUESTION

Pending decision on the licensee's challenge, should the Forum's direction to reassess the demand on the basis of reduced load be stayed?

HOLDING

Finding that the matter required consideration, the Division Bench stayed, till the next date of listing, the effect and operation of the Forum's order dated 22 March 2021 to the extent it directs re-assessment of the demand with reduced load; the first part of the order (implementing the Committee's report for 27.10.2011 to 23.11.2011) was left untouched. The relief was interlocutory and the interim order was extended on later dates. **order of 26.07.2021**

QUALIFIER

Interlocutory direction on a pending writ; the clause 5.7 question is not decided.

EVIDENCE *"The matter requires consideration."* **order of 26.07.2021**

EVIDENCE *"Till the next date of listing, the effect and operation of the order dated 22.03.2021 to the extent it directs for re-assessment of the demand with reduced load shall remain stayed."* **order of 26.07.2021**

FLAG Order-sheet compilation (26.7.2021 to 24.4.2023) without printed page numbers or numbered paragraphs; pins are order dates. Coram is the bench that passed the substantive interim order dated 26.7.2021; the matter later travelled through other benches. Petitioner is the licensee.

HOLDING-UNIT · UP-2005::5.7

OBITER

Whether an unmetered period must be billed on three months' average consumption under clause 5.7, precluding a 'reduced load' reduction

QUESTION

Where electricity is supplied without a meter, must the bill be raised on the basis of three months' average consumption after installation of the meter under clause 5.7 of the Supply Code, so as to preclude a further reduction on 'reduced load'?

HOLDING

The petitioner-licensee contended that supply without a meter attracts clause 5.7 of the Supply Code, under which the bill is to be raised on the basis of three months' average consumption after installation of the meter, and that as the Committee had already reported on that very basis there was no justification to further reduce the consumption. The Court recorded that the matter required consideration and did not decide the point, granting interim protection. **order of 26.07.2021**

QUALIFIER

Prima facie only; recorded as requiring consideration and left for final decision.

EVIDENCE *"if the electricity supply is made without a meter, clause 5.7 of the Code gets attracted. As per which, the bill is to be raised on the basis of three months average consumption after installation of the meter."* **order of 26.07.2021**

EVIDENCE *"It has been submitted that the Committee submitted the report on that very basis therefore, there was no justification to further reduce the consumption."* **order of 26.07.2021**

FLAG Order-sheet source; pins are order dates.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

The consumer's billing grievance over an unmetered period was adjudicated through the Consumer Grievance Redressal Forum and the Electricity Ombudsman (which remanded on 28.12.2018) before the licensee challenged the Forum's final order of 22.03.2021 in this writ. [order of 26.07.2021](#)

no-meter-billing-on-three-months-average-clause-5.7

The licensee contended that supply given without a meter attracts clause 5.7, requiring the bill to be raised on three months' average consumption after meter installation — the basis on which the Committee had reported — leaving no room for a further reduction on reduced load; recorded as requiring consideration. [order of 26.07.2021](#)

interim-stay-of-forum-direction-to-reassess-on-reduced-load

The second part of the Forum's order, directing reassessment of the remaining period on reduced load, was stayed pending final hearing at the licensee's instance, while the part implementing the Committee's report was left to operate. [order of 26.07.2021](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER, WHERE ELECTRICITY IS SUPPLIED WITHOUT A METER, CLAUSE 5.7 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 REQUIRES THE BILL TO BE RAISED ON THE BASIS OF THREE MONTHS' AVERAGE CONSUMPTION AFTER INSTALLATION OF THE METER, SO AS TO PRECLUDE THE FORUM'S DIRECTION TO REASSESS THE REMAINING PERIOD ON REDUCED LOAD

Recorded on 26 July 2021 as requiring consideration; the reduced-load reassessment was stayed and the question left for final decision. Compare the spine authority confining a comparable three-months measure in a metering dispute. [\[SCJ-203\]](#)

[order of 26.07.2021](#)

RELATED CASES — SEE ALSO

SCJ-203 — Applies the three-months-consumption yardstick to a metering discrepancy (clause 5.6(c)(ii)) — the same 'three months' average' measure the licensee here invokes under clause 5.7 for the unmetered period; also a dispute against the Pashchimanchal Nigam.

SCJ-1055 — Spine sibling on the clause 7.10 route — the Consumer Grievance Redressal Forum / Ombudsman machinery through which this billing dispute was adjudicated before the licensee brought it to the writ court.

SCJ-1137 — Another clause 7.10 billing-grievance matter routed through the Consumer Grievance Redressal Forum, the forum whose order the licensee challenges here.